

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Rafael Tertulien and Jason Mojica, :: Index Number:
Date Purchased:
: Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Janny Carrasquillo, Shield 17343 of NBBX :
and New York City Police Officers John Doe, :Plaintiff Tertulien's residence
is:
: 2526 Glebe Avenue
Bronx, NY 10461

Defendants :

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: May 12, 2023
New York, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Janny Carrasquillo, Shield 17343 of NBBX

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Rafael Tertulien and Jason Mojica, :

Plaintiffs, :

: VERIFIED COMPLAINT

-against- :

City of New York, New York City Police Department,
Police Officer Janny Carrasquillo, Shield 17343 of NBBX :
and New York City Police Officers John Doe, :

Defendants. :
-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Rafael Tertulien, (hereinafter referred to as “TERTULIEN”) resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Jason Mojica, (hereinafter referred to as “MOJICA”) resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned, Police Officer Janny Carrasquillo, Shield 17343 of NBBX (hereinafter referred to as “CARRASQUILLO) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the police officers involved in the arrest of Plaintiffs (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about August 31, 2022 notice required by Municipal Law 50-E was given to City of New York, by personal service for TERTULIEN and MOJICA. Said notice set forth the facts underlying Plaintiffs' claims against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. On or about November 8, 2022 a hearing required by Municipal Law 50-H was conducted as to TERTULIEN and MOJICA. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by TERTULIEN and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

9. That on or about August 25, 2022 at approximately 4:00PM in the vicinity of 1209 Wheeler Avenue, Bronx NY Plaintiffs going to a local deli to get something to eat when they were stopped, handcuffed and arrested by CARRASQUILLO and DOES.

10. That at no time had TERTULIEN or MOJICA engaged in any unlawful or criminal activity.

11. That at no time did TERTULIEN or MOJICA sold a controlled substance to anyone.

12. That at no time did TERTULIEN or MOJICA possess a controlled substance.

13. That after Plaintiffs were arrested they were both taken to the 43 precinct.

14. That when Plaintiffs arrived at the 43 precinct they were each placed into a cell with other males for several hours.

15. That after being held in cells for several hours in the 43 precinct, each of the Plaintiffs were subjected to a strip search and that nothing of an unlawful or illegal nature was recovered.

16. That after being held in cells for several hours in the 44 precinct, Plaintiffs were removed to Bronx County Central Booking located at 215 East 161 Street, New York, New York.

17. That while at Bronx Central Booking, Plaintiffs were each held in a cell with other males for several hours.

18. That while at Bronx Central Booking, Plaintiffs were subjected to harassment from the other male prisoners.

19. That on about August 27, 2022, TERTULIEN and MOJICA were each released from custody after the Office of the Bronx County District Attorney declined to prosecute the arrest.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

20. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 19, as if more fully stated herein at length.

21. That Defendants acted with actual malice toward TERTULIEN and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

22. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

23. That as a result of the actions by Defendants was traumatized and fears for his physical safety when she sees and encounters members of the New York City Police Department from that day and onward.

24. That as a result of the Defendants' actions, TERTULIEN has been unable to sleep.

25. That as a result of the Defendants' actions, TERTULIEN missed several days from work.

26. That as a result of the Defendants' actions TERTULIEN sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

27. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of TERTULIEN as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

29. Defendants having no lawful authority to arrest TERTULIEN did, nevertheless, unlawfully arrest TERTULIEN with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff TERTULIEN is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. Defendants conspired to violate TERTULIEN's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff TERTULIEN is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. Plaintiff TERTULIEN was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused TERTULIEN to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff TERTULIEN by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff TERTULIEN. TERTULIEN is thus entitled to compensatory and exemplary damages.

34. That during the pendency of the case, Defendants maliciously prosecuted TERTULIEN by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

35. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against TERTULIEN, CARRASQUILLO and DOES persisted in their false claim that TERTULIEN sold or possessed a controlled substance when they knew he had not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. At all times pertinent hereto, CARRASQUILLO and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

38. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CARRASQUILLO and DOES committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

39. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. The City of New York and New York City Police Department's failure to provide adequate training and supervision to CARRASQUILLO and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff TERTULIEN. Plaintiff TERTULIEN is thus entitled to compensatory exemplary damages.

41. That the City of New York and New York City Police Department were aware that CARRASQUILLO was the subject of three (3) Civilian Complaint Review Board complaints and despite such, they continued to employ her.

42. That the City of New York and New York City Police Department were aware that CARRASQUILLO was the subject of a civil rights lawsuit, index number 035307/2019E,

Muhammed Addison v. City of New York et. al, in Bronx County Supreme Court and despite such, they continued to employ her.

43. That the City of New York and New York City Police Department were aware that CARRASQUILLO was the subject of a civil rights lawsuit, index number 027907/2019E, Jamie Smith v. City of New York et. al, in Bronx County Supreme Court and despite such, they continued to employ her.

44. That the City of New York and New York City Police Department were aware that CARRASQUILLO was the subject of a civil rights lawsuit, index number 032024/2018E, Luis Mateo v. City of New York et. al, in Bronx County Supreme Court and despite such, they continued to employ her.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

45. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff TERTULIEN.

47. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff TERTULIEN.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

48. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 47, as if more fully stated herein at length.

49. That Defendants acted with actual malice toward MOJICA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of MOJICA.

50. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

51. That as a result of the actions by Defendants, MOJICA was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

52. That as a result of the Defendants' actions, MOJICA has been unable to sleep.

53. That as a result of the Defendants' actions, MOJICA was forced to miss several days from work.

54. That as a result of the Defendants' actions MOJICA sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

55. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 54, as if more fully stated herein at length.

56. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff MOJICA as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

57. Defendants, having no lawful authority to arrest MOJICA, did, nevertheless, unlawfully arrest MOJICA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff MOJICA is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

58. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 57, as if more fully stated herein at length.

59. Defendants conspired to violate MOJICA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff MOJICA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

60. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

61. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff MOJICA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of MOJICA by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of MOJICA. Plaintiff MOJICA is thus entitled to compensatory and exemplary damages.

62. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against MOJICA, DOES persisted in their false claim that MOJICA sold and possessed a controlled substance when they knew he had not.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. At all times pertinent hereto CARRASQUILLO and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

65. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CARRASQUILLO and DOES committed within the scope of his employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

66. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 65, as if more fully stated herein at length.

67. The City of New York and New York City Police Department's failure to provide adequate training and supervision to CARRASQUILLO and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff MOJICA. Plaintiff MOJICA is thus entitled to compensatory exemplary damages.

68. That the City of New York and New York City Police Department were aware that CARRASQUILLO was the subject of three (3) Civilian Complaint Review Board complaints and despite such, they continued to employ her.

69. That the City of New York and New York City Police Department were aware that CARRASQUILLO was the subject of a civil rights lawsuit, index number 035307/2019E, Muhammed Addison v. City of New York et. al, in Bronx County Supreme Court and despite such, they continued to employ her.

70. That the City of New York and New York City Police Department were aware that CARRASQUILLO was the subject of a civil rights lawsuit, index number 027907/2019E, Jamie Smith v. City of New York et. al, in Bronx County Supreme Court and despite such, they continued to employ her.

71. That the City of New York and New York City Police Department were aware that CARRASQUILLO was the subject of a civil rights lawsuit, index number 032024/2018E, Luis Mateo v. City of New York et. al, in Bronx County Supreme Court and despite such, they continued to employ her.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

72. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 71, as if more fully stated herein at length.

73. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff MOJICA.

74. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff MOJICA.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

_____*Jason Steinberger*_____
Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue, Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: May 12, 2023

Jason Steinberger
Jason A. Steinberger